

MINUTES OF MEETING
WAGONER COUNTY BOARD OF COMMISSIONERS
TUESDAY, FEBRUARY 20, 2024

The Board of Wagoner County Commissioners met in the Commissioners Meeting Room. Chairman, Tim Kelley, Vice-Chairman, James Hanning, Member, Chris Edwards, and County Clerk, Lori Hendricks were present. Assistant District Attorney Andy Williams was also present. Advance notice of the meeting was posted on the Wagoner County Courthouse bulletin boards and the County website on February 16, 2024.

- I. The meeting was called to order by Commissioner Kelley at 9:04 a.m. The roll was called with the following responses: Hanning, present, Edwards, present, Kelley, present.
- II. Prayer was led by Commissioner Edwards and Pledge of Allegiance was led by Lori Hendricks.
- III. A motion was made by Commissioner Kelley seconded by Commissioner Hanning to approve the Consent Agenda. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.
 - A. Approve or disapprove minutes of commission meeting held on February 12, 2024.
 - B. Approve or disapprove deposit(s)
 - C. Approve or disapprove Resolution #2024-013 County Clerk to Reimburse the General Fund with American Public Life Check in the amount of \$522.24.
 - D. Approve or disapprove Resolution #2024-014 County Clerk Request to Surplus the following equipment for disposal: Black Rolling Office Chairs Asset #F102-093 AND #F102-094.
 - E. Approve or disapprove additional signatures for 324A claim for Right of Way Acquisition on 273rd East Avenue, State Project 32380 previously approved on July 3, 2023.
 - F. Approve or disapprove the following Okay-Porter (Anchor) Road acquisition claims to be paid from the ARPA Fund:
 1. \$10,000.00 – Property Legal Description: Section 27, Township 16N, Range 18E, Wagoner County. Property Owner, Khun Walker Thongrarai.

2. \$3,975.00 - Property Legal Description: Section 27, Township 16N, Range 18E, Wagoner County. Property Owner, Kenny Goodwin.
 3. \$17,329.00 - Property Legal Description: Section 26, Township 16N, Range 18E, Wagoner County. Property Owner, Morgan LeighAnne Hammer.
 4. \$7350.00 - Property Legal Description: Section 36, Township 16N, Range 18E, Wagoner County. Property Owner, Robert James Welch and Robbin Dale Welch.
 5. Correction of \$4,213.13 and \$10,786.87 - Property Legal Description: Section 27, Township 16N, Range 18E, Wagoner County. Property Owner, Dennis R. Yochum approved on February 5, 2024.
- G. Approve or disapprove the following invoice(s):
1. Gable Gotwals - #781435 in the amount of \$4,412.46 for Legal Services related to Case No. CV-2022-125.
 2. Gable Gotwals - #781436 in the amount of \$2,734.50 for General Legal Services.
 3. Gable Gotwals - #781434 in the amount of \$1,900.00 for General Legal Services for the Wagoner County Development Authority.
 4. Kimley Horn - #061333600-0124 in the amount of \$13,100.00 for professional services for 273rd Widening.
- H. Approve or disapprove signature of Commitment letter for Wagoner County: Advancing Safety, Mobility, Connectivity, Resiliency, and Economic Competitiveness through State and Local Partnerships RAISE grant application (273rd East Avenue between 71st to 101st).
- I. Approve or disapprove Statutory Election Board Secretary Salary Reimbursement Claim for January 2024.
- J. Reports
1. Cash Voucher weekly report
 2. Emergency Management weekly report
 3. Economic Development Director Weekly Report
 4. Weekly Inmate Headcount Report
 5. Maintenance Weekly Reports
 6. Engineer weekly reports

7. Planning & Zoning weekly reports
 8. E-911 weekly reports
 9. Election Board Monthly Report for January 2024
 10. Treasurer Monthly Report for January 2024
- K. Approve or disapprove cancellation of the following purchase order(s): #596, #4243, #5044
- L. Approve or disapprove the following blanket purchase order(s): #5321, #5337, #5379, #5381, #5382, #5383, #5385, #5389, #5391, #5425, #5402, #5404, #5405, #5407 thru #5415, #5426, #5427, #5428, #5432, #5433, #5436, #5438, #5439, #5441, #5442, #5446, #5447, #5450, #5451, #5477.
- M. Approve or disapprove calendar claims.
- IV. No Items were Removed from the Consent Agenda. No action was taken.
- V. Action Items
- A. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve the Local Development Act Tax Exemption Agreement between the City of Tulsa, the Board of County Commissioners of Wagoner County, Independent School District No. 2 of Rogers County, School District No. 18 of Tulsa County, the Wagoner County Health Department, and Rolling Hills Fire Protection District No. 1 (Project Anthem). The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.
- B. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve financing the purchase of a new Asphalt paver for District #1 for 60 months from Security State Bank. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.
- C. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve the EODD REAP Grant Closeout Certification for Asphalt Overlay Project (E 21st St from 289TH – 305TH) in District 1. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.

- D. A motion was made by Commissioner Kelley and seconded by Commissioner Edwards to approve the EODD REAP Grant Acceptance Letter for Drainage, Grade, and Surface Improvements Project on 321st E Ave., between 161st to S 171st, District 3. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.
- E. A motion was made by Commissioner Kelley and seconded by Commissioner Edwards to approve the Urban and Community Forestry Grant Assistance Program application for Wagoner County Courthouse Parking Urban Canopy in the requested amount of \$50,000. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.

VI. Old Business

- A. A motion was made by Commissioner Kelley and seconded by Commissioner Edwards to deny Resolution #2024-011 appeal of the zoning map amendment request in District 3, ZNE-75-2023 for Mark Truitt. Location: 14620 S. 417th E. Ave., Coweta, OK. The motion was approved with the following votes cast: Edwards, aye, Hanning, no, Kelley, aye.
- B. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to approve Oklahoma Drone Technologies, LLC's estimate for soft washing services in the amount of \$10,079.55, to be paid from Courthouse Renovation Account #1306-1-8020-2005. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.
- C. A motion was made by Commissioner Kelley and seconded by Commissioner Edwards to award Bid #2024-001- Court House & DAV Roof Repairs to Next Level Roofing. The award is for Base Bid A with Alternates 2, 5, 6, 7, and 8 in the amount of \$601,010 less deducts from Courthouse Building and Maintenance account # 1306-1-8020-2005. It also includes Base Bid B with Alternates B1 and B3 in the amount of \$34,900 less deducts from Commissioners Use Tax account # 1301-1-8020-2005. The motion was approved with the following votes cast: Edwards, aye, Hanning, no, Kelley, aye.

VII. Financial Matters

- A. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve a Supplemental Appropriation in the amount of \$2,000.00 from Capital Outlay Account #001-1-2000-4110 to County Clerk's Maintenance and Operation Account #001-1-1000-2005. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.

VIII. New Business – There was none.

- IX. Public Comment – Wagoner County Citizens Mike Lamberson, James Stevens, Patty, and Tina Anderson, oppose Old Business Item VI.A. Mike Lamberson expressed his opposition due to light pollution and drainage issues.
- X. Announcements – Economic Development Director, Darla Heller announced there will be a tour at ICTC in Coweta on Wednesday at 2:00 p.m.
- XI. A motion was made by Commissioner Hanning and seconded by Commissioner Edwards to Recess at 10:49 a.m. The motion was approved with the following votes cast: Edwards, aye, Hanning, aye, Kelley, aye.

Presented and approved by the Wagoner County Commission on this 26th day of February 2024.

TIM KELLEY, CHAIRMAN

JAMES HANNING, VICE-CHAIRMAN

CHRIS EDWARDS, MEMBER

ATTEST: LORI HENDRICKS
WAGONER COUNTY CLERK

BOCC/LH/gp